

ORDERS MADE WITHOUT PARTICIPATION OF A DISABLED LITIGANT

*How statutory participation measures were withdrawn from a disabled litigant on 7 March
2024,
and why every subsequent order is procedurally unsafe*

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4 May 2026

Day 1 was published on 20 April 2026. Day 2 was published on 1 May 2026.

Both are available in the public archive.

Public archive: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

On 7 March 2024 — eight days after the conclusion of the ten-day final hearing in BV20D01752 — the participation measures the court itself had ordered for a disabled litigant under Family Procedure Rules Part 3A ceased.

There is no order revoking them.

There was no hearing.

There were no reasons.

The litigant was not notified.

They have not been restored. As at the date of this statement, the period during which they have not been restored is 788 days.

No judicial act revoking those measures has been identified.

Day 2 of this serialised public record established the suppression of disability evidence in the judgment record. This statement addresses the procedural consequence of that omission.

Who I am

I am Nadia Zahmoul. I am autistic — diagnosed by NHS specialist autism services and confirmed in writing by the Central London Adult Autism Service in July 2025, and reaffirmed by the South Kensington and Chelsea Community Mental Health Team of the Central and North West London NHS Foundation Trust in a letter dated 17 April 2026.

I have Post-Traumatic Stress Disorder, chronic since 2013.

I have Sjögren's Syndrome, biopsy-confirmed October 2025, in active flare during the period covered by this statement.

I am a litigant in person across six live High Court proceedings. I am operating without representation, without participation measures, and on £85 in my bank account, with no income and no permanent home, against an accumulating liability of more than one million pounds. The litigation conduct that produced that liability is the subject of this statement.

What the law required

The framework is short. Three rules. None of them was followed.

Family Procedure Rules Part 3A

FPR Part 3A and Practice Direction 3AA provide for the assessment, identification, and implementation of participation directions for parties whose participation in proceedings is, or is likely to be, diminished by reason of vulnerability.

FPR 3A.4(1)(b) and 3A.5(1)(b) require the court to consider, throughout the proceedings, what participation directions are needed and to keep them under review.

Once participation directions have been made, they remain in force until the proceedings to which they relate are determined, **unless they are varied or revoked by an order of the court** supported by reasons recorded on that order. There is no provision for revocation by administrative act, by lapse, or by silence.

Equality Act 2010

Section 20 of the Equality Act 2010 imposes a duty on public bodies, including courts and HMCTS, to make reasonable adjustments for disabled persons. Section 149 imposes the Public Sector Equality Duty: a continuing obligation to have due regard to the need to eliminate discrimination and advance equality of opportunity.

Section 29 prohibits a service-provider from discriminating against, harassing, or victimising any person seeking the service. The administration of justice is such a service.

Autism Act 2009

The statutory guidance issued under the Autism Act 2009 requires public bodies to identify autistic adults using their services, to record their needs, and to make appropriate adjustments to ensure equal access. Compliance is mandatory.

Article 6 ECHR

Article 6 of the European Convention on Human Rights guarantees a fair hearing. The European Court of Human Rights has held repeatedly that the right is to a hearing that is practical and effective, not theoretical and illusory. A hearing in which a disabled litigant cannot effectively participate is not a fair hearing.

7 March 2024 — the documented absence

On 28 February 2024, the ten-day final hearing in BV20D01752 concluded. During that hearing, participation measures had been in place under FPR Part 3A. The trial record shows them in operation: the trial judge ordered breaks because of my presentation; counsel adjusted cross-examination for my distress; my own counsel conducted the hearing on the basis that the participation directions remained operative.

On 7 March 2024, eight days after the trial concluded, the participation measures ceased. The events of that day, set out below, are documented on the court file and in correspondence.

The four documented absences

What FPR Part 3A required	What is recorded on the file
An order revoking the participation measures, supported by reasons recorded on that order (FPR 3A.9)	No order has been identified. HMCTS has been unable to identify any order revoking the measures. The Defendants in AC-2025-LON-004293 have not pleaded the existence of such an order.
A hearing at which the question was considered, with notice to the disabled party	No hearing has been identified. No party was heard. No transcript exists of any such hearing.
Reasons for the variation or revocation	No reasons have been identified. No document recording reasons exists on the court file or has been disclosed in subsequent proceedings.
Notification to the affected party	No notification was sent. The disabled litigant was not informed that the participation measures had ceased, were considered to have ceased, or were under review.

Each of these is a documented gap. Each gap engages a documented duty. None has been addressed at any point in the 788 days that have followed.

What followed is the operative point of this statement.

Orders made without restored participation

Each of the following decisions was made in the absence of restored participation measures.

These are the operative orders, sealed by the courts, currently in force, that produced the £1,055,654.50-plus financial liability against me, that refused permission for judicial review of the underlying administrative failures, and that are the basis of the enforcement proceedings now active in Chancery.

Date	Order / Decision	Court
18 Apr 2024	Final judgment in BV20D01752 [2024] EWFC 79 — 111 paragraphs, zero references to autism, PTSD, disability, vulnerability, mental health, or Part 3A. Paragraph 64 substitutes a moral characterisation for the clinical reality documented at trial.	Family Division — MacDonald J
24 May 2024	Costs judgment — £255,654.50 in costs ordered against the disabled litigant, plus £800,000 add-back to her side of the balance sheet — total £1,055,654.50. All anchored in characterisations made impossible if the suppressed disability evidence had been engaged with.	Family Division — MacDonald J
23 Dec 2024	Court of Appeal refusal of permission to appeal. The disability suppression in the underlying judgment was not engaged with on appeal.	Court of Appeal — Moylan LJ
31 Mar 2025	Default judgment in Detach Lending v Zahmoul — £1,008,848.42 plus interest at £281.38/day. Anchored in the same family-law conduct findings that the suppressed disability evidence would have made impossible.	Chancery Division
8 May 2025	Further hearing in BV20D01752 — Dr Poyser's clinical letter selectively quoted: Findings A, B and D quoted; Finding C (autism) erased. Indemnity costs ordered against the disabled litigant.	Family Division — MacDonald J
4 Aug 2025	Court of Appeal refusal of permission to re-open. Disability suppression not engaged with.	Court of Appeal — King LJ
11 Mar 2026	Refusal of permission for judicial review (AC-2025-LON-004293), certified Totally Without Merit. The order does not address any of the	Administrative Court — Collins Rice J

	seven pleaded grounds. It addresses different matters not before the Court.	
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Every order in the table above was made while the participation measures were un-restored. Every order in the table above was made in the absence of effective participation by the disabled litigant. Every order in the table above is therefore an order made without participation of a disabled litigant.

On 17 April 2026, Dr Omar Shoukry of the Central and North West London NHS Foundation Trust wrote to confirm that the litigant remains under intensive specialist NHS care, that the autism diagnosis is confirmed, and that the conditions described — the very conditions the original court directions were intended to accommodate — continue to be exacerbated by the proceedings. The clinical position has not changed. The procedural response has.

The harm is continuing

The orders identified above are not historical artefacts. They are operative. The financial liabilities they produced are in active enforcement. The Detach Lending default judgment of 31 March 2025 — anchored in the family-law conduct findings the suppressed disability evidence would have made impossible — accrues at £281.38 per day. The Chancery Division currently has the enforcement of that liability before it.

The clinical harm is contemporary. The letter of Dr Omar Shoukry of 17 April 2026 confirms continuing intensive specialist NHS care. It identifies the proceedings as a cause of clinical deterioration. The autism diagnosis it confirms is the same diagnosis the original participation directions were intended to accommodate.

The institutional position has been formally recorded. On 17 April 2026, the Metropolitan Police initiated a referral under section 42 of the Care Act 2014, MASH route, reference 0103/17APR26. That referral classifies the litigant as an adult at risk. Further engagement was recorded on 29 April 2026. The proceedings continue without recognition of that status.

The conduct described in this statement, in Day 1, and in Day 2 of this serialised public record is the subject of a formal Misconduct in Public Office criminal referral filed at the Metropolitan Police Specialist Crime Command, the Crown Prosecution Service Special Crime Division, and the National Crime Agency Economic Crime Command on 20 March 2026, supported by a 244-page documentary record. The referral is registered with the Metropolitan Police under CCR-6501-26-0100-000 and is operationally engaged. It is the same conduct, considered through the lens of section 3 of the Public Office (Accountability) Bill 2024-26 and the common-law offence of Misconduct in Public Office. The procedural inaction identified in this statement runs in parallel with the criminal track. They are not separate matters. They are the same institutional position seen from two angles.

The exploitation of documented vulnerability does not become historical because it is documented. It continues until it is addressed. As at the date of this statement, it has not been addressed.

The recusal application

On 10 February 2025, an application was filed for the recusal of the trial judge in BV20D01752. As at the date of this statement, that application has been pending for 448 days.

The judge whose conduct is challenged has continued to determine applications concerning that conduct.

Including the EX107 transcript application of 27 March 2026, refused in one line on 27 March and again in a structured refusal on 30 March, the formal request for written reasons of 30 March, repeated on 14 April, which has been pending for 35 days. Including every application made in BV20D01752 over the 448-day period.

There has been no determination of the recusal. There has been no acknowledgement that the recusal is undetermined. There has been no procedural mechanism by which the disabled litigant could compel determination.

The institutional position right now

Three procedural facts as at the date of this statement:

- The CPR 3.1(7) revocation application sealed on 12 March 2026 — applying to revoke the JR refusal on the grounds that it does not address the matters pleaded — has been undetermined for 53 days. The Court has not assigned it to a judge.
- The N244 expedition application sealed on 14 April 2026, filed specifically to force determination of the CPR 3.1(7) before the CPR 52.8 alternative-remedy deadline, has been undetermined for 20 days. The CPR 52.8 deadline lapsed on 23 April 2026 without determination.
- The recusal application in BV20D01752 has been pending for 448 days. The application to rely on further particulars of Ground 1 in the JR has been pending for 116 days.

The orders identified earlier in this statement remain in force. The financial liabilities anchored in them remain in enforcement. The disabled litigant remains without restored participation measures.

Closing

This statement is not a pleading, an application, or an invitation to further correspondence.

It is a public record of an unanswered procedural question.

No order revoking participation measures has been identified.

The orders made in their absence remain in force.

The procedural basis on which they stand has not been determined.

Nadia Zahmoul

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Veritas Numquam Perit

Accompanying material

- **Day 1 — 20 April 2026.** Public-record statement: autism safeguards revoked, police referral, financial discrepancy. Available in the public archive.
- **Day 2 — 1 May 2026.** Public-record statement: The Suppressed Clinical Evidence — selective citation of the NHS clinical letter of 26 March 2025 in the judgment of 8 May 2025. Available in the public archive and previously distributed.
- **Skeleton Argument supporting reconsideration of the Order of 4 December 2025 — 12 March 2026.** 233 pages including annexes. Filed in AC-2025-LON-004293 with the CPR 3.1(7) application. Establishes the legal framework engaged by FPR Part 3A, EA 2010, the Autism Act 2009, and Article 6 ECHR. Paragraphs 33-35 record the instruction of an independent expert under FPR Part 25 / CPR Part 35 to review the participation measures in place post-trial.
- **Five Matters for Determination — 20 April 2026.** One-page document identifying the five matters formally raised through court proceedings, parliamentary submissions, and criminal referral channels for which no judicial determination has been identified. Filed with Day 1.
- **NHS clinical letter of 17 April 2026.** Letter from Dr Omar Shoukry, Speciality Doctor in General Adult Psychiatry, South Kensington and Chelsea Community Mental Health Team, Central and North West London NHS Foundation Trust. Confirms continuing clinical engagement, the autism diagnosis, and the assessment that the proceedings are causing clinical harm. To be filed in support of the consolidated application referred to below.
- **Submission and Reply Chronology — 3 May 2026.** 78 formal submissions across courts, Parliament, police, the Lord Chancellor, and oversight bodies between October 2025 and May 2026. 33 received no response. One institution (PHSO) provided an adequate substantive response.
- **Notice of Referral — Misconduct in Public Office — 16 March 2026.** Filed with Metropolitan Police Specialist Crime Command, CPS Special Crime Division, NCA Economic Crime Command. Sets out the four MIPO elements as applied to the named subjects. The criminal referral CCR-6501-26-0100-000 is operationally engaged.
- **Care Act 2014 section 42 safeguarding referral — 17 April 2026.** Police-initiated. MASH route. Reference 0103/17APR26. Adult-at-risk classification. Further engagement on 29 April 2026.

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